TERMS OF SERVICE AND PATIENT AGREEMENT

Cardiovascular Care Center

AI-Integrated Cardiovascular Clinic Management System

Effective Date: September 21, 2026
Governing Jurisdiction: Republic of the Philippines

Please read these Terms of Service and Patient Agreement ("Agreement" or "Terms") carefully before creating a patient account or otherwise using the AI-Integrated Cardiovascular Clinic Management System (the "Service"). By creating an Account, You agree to be bound by these Terms.

1. Legal Acceptance and the Electronic Contract

1.1 Binding Agreement

This Agreement is a legally binding electronic contract entered into by and between You ("Patient," "You," "Your," or "Duly Authorized Representative") and the Cardiovascular Care Center ("Company," "Clinic," "We," "Us," or "Our"), operating at 3/F Room 303, Zone 073, Mirasol Building, Taft Avenue, Ermita, Manila, 1000 Metro Manila, Philippines.

1.2 Statutory Validity of Electronic Assent

Pursuant to Sections 6, 7, 8, 11, and 16 of the Electronic Commerce Act of 2000 (Republic Act No. 8792), Your affirmative act of checking the box marked “I Agree to the Terms of Service and Privacy Policy” and completing account registration constitutes the legal equivalent of Your handwritten signature, consistent with the Supreme Court's Rules on Electronic Evidence (A.M. No. 01-7-01-SC). This creates a contract enforceable before the courts and administrative bodies of the Republic of the Philippines.

1.3 Legal Capacity

By creating an Account, You warrant that You are at least eighteen (18) years of age and possess full legal capacity under Philippine civil law. If You are registering an account on behalf of a minor or a legally incapacitated dependent:

- You warrant that You are the biological parent, court-appointed legal guardian, or attorney-in-fact holding a valid Special Power of Attorney (SPA) authorizing You to manage the dependent's health records; and
- You agree to assume full civil liability for all actions executed through the dependent's Account.

2. Creating and Using Your Patient Account

When You create a patient Account, the following conditions apply:

- **Accurate Information:** You must provide information that is true, accurate, complete, and current at all times, including Your personal details and relevant health

information, so that the Clinic may provide You with safe and appropriate clinical care. This requirement governs the information You give Us about Yourself; it is separate from how Your Health Information may be minimized or de-identified when shared for system testing and development (see Section 6.4).

- **Password Safety and Sole Liability:** You are solely responsible for safeguarding the password used to access Your Account and for any activity that occurs under it. You agree not to disclose Your password to any third party and must notify Us immediately upon becoming aware of any breach of security or unauthorized use of Your Account.
- **Single Account Rule:** Each patient is entitled to only one Account, except where a parent or legal guardian manages a separate linked Account on behalf of a dependent. You may not create multiple Accounts for the same patient, including to book multiple or overlapping appointment slots, or use another person's identity to create an Account.
- **Prohibited Usernames:** You may not use as a username the name of another person or entity, a name or trademark subject to the rights of another person or entity without appropriate authorization, or a name that is obscene, defamatory, or otherwise offensive.
- **Right to Suspend or Terminate:** We reserve the right to suspend or terminate any Account that provides false or misleading information, is used to misuse or abuse the Service, or otherwise breaches these Terms.

3. Statutory and Regulatory Compliance

The design, operation, and health-data processing workflows of this Service are conducted in accordance with:

- The Data Privacy Act of 2012 (Republic Act No. 10173), its Implementing Rules and Regulations, and applicable National Privacy Commission Circulars, including NPC Circular No. 16-03 (Personal Data Breach Management);
- The Medical Act of 1959 (Republic Act No. 2382), as amended;
- The Universal Health Care Act (Republic Act No. 11223);
- The Cybercrime Prevention Act of 2012 (Republic Act No. 10175) and the Rule on Cybercrime Warrants (A.M. No. 17-11-03-SC);
- The Anti-Wiretapping Act (Republic Act No. 4200), as applied to in-clinic audio or visual recording of consultations (see Section 4.3);
- The Electronic Commerce Act of 2000 (Republic Act No. 8792) and the Supreme Court Rules on Electronic Evidence (A.M. No. 01-7-01-SC);
- The Consumer Act of the Philippines (Republic Act No. 7394);

- The Expanded Senior Citizens Act (Republic Act No. 9994) and the Magna Carta for Persons with Disability (Republic Act No. 10754), as amended, solely with respect to the statutory discounts described in Section 9;
- The Intellectual Property Code of the Philippines (Republic Act No. 8293), as amended by Republic Act No. 10372;
- DOH Department Circular No. 2021-0226 (Revised Approved Records Disposition Schedule for Health Facilities); and
- The Civil Code of the Philippines (Republic Act No. 386).

This Service is a clinical scheduling, records, and decision-support portal. It does not provide telemedicine or teleconsultation, does not electronically transmit or dispense prescriptions, and does not process online payments. Laws and administrative issuances specific to those activities are accordingly not invoked in this Agreement.

4. Medical Disclaimer and Artificial Intelligence

4.1 Acute Emergency Exclusion

THE SERVICE IS NOT A CRITICAL CARE DISPATCH PLATFORM OR EMERGENCY ALARM SYSTEM.

If You experience acute chest pain, crushing substernal pressure, sudden radiating left-arm discomfort, acute shortness of breath, sudden hemiparesis (facial drooping or arm weakness), speech impairment, or severe syncope (loss of consciousness), DO NOT USE THIS SERVICE.

- Immediately call 911 (Philippine National Emergency Hotline), call your local Local Government Unit (LGU) Disaster Risk Reduction and Management Office (DRRMO), or proceed to the nearest hospital Emergency Room.

4.2 Non-Diagnostic Nature of Artificial Intelligence

The Service incorporates an artificial intelligence model, DeepSeek-V4-Flash, operating within a Retrieval-Augmented Generation (RAG) framework, to synthesize patient timelines, format vitals, compile diagnostic tests (Echo, Doppler, TMT), and draft monthly clinical abstracts.

Pursuant to Section 10 of the Medical Act of 1959 (RA 2382), the act of medical diagnosis, clinical prognosis, and therapeutic prescription is reserved strictly for physicians licensed by the Professional Regulation Commission (PRC) Board of Medicine.

The artificial intelligence features do not practice medicine, do not formulate autonomous clinical diagnoses, and do not make clinical treatment decisions. All AI-Generated Content functions exclusively as preparatory administrative and clinical decision support.

Every AI abstract, summary, or report is reviewed, edited, validated, and signed off by a licensed cardiologist before inclusion in Your formal medical record or reliance in clinical care.

4.3 In-Clinic Recording Prohibition

Consultations under this Service occur in person at the Clinic. Audio or video recording of a consultation, or of any device screen displaying Health Information, by You or any other participant, requires the prior, explicit, and separately logged consent of every person present, consistent with the Anti-Wiretapping Act (Republic Act No. 4200). Any recording made with such consent is treated as Health Information under Section 6 of this Agreement.

5. Prescriptions and Medication Records

Prescriptions and medication instructions issued by Your attending cardiologist during a consultation are recorded in the Service as part of Your medical chart, for continuity of care and Your own reference. The Service records the medication name, dosage, frequency, duration, and any instructions given by Your cardiologist.

The Service does not dispense medication, does not electronically transmit prescriptions to a pharmacy, and is not a substitute for any physical or other prescription document required for dispensing under Philippine law. You should confirm dispensing requirements directly with Your pharmacist and follow Your cardiologist's verbal and written instructions. You must never alter a prescribed dosage, or combine, skip, or duplicate doses, without first consulting Your attending cardiologist.

The Clinic, system developers, and hosting providers incur no liability for adverse events resulting from Your unauthorized alteration of a prescribed dosage or Your failure to follow Your cardiologist's instructions.

6. Privacy, Sensitive Personal Information, and System Forensics

6.1 Lawful Processing of Sensitive Health Data

Your Health Information constitutes Sensitive Personal Information (SPI) under Section 3(l) of the Data Privacy Act of 2012 (RA 10173). In accordance with Section 13 of the Act, You grant explicit consent for the processing, indexing, and storage of Your medical histories, diagnostics, and vitals strictly for medical treatment and health services administration, under the professional direction of licensed medical professionals bound by the duty of medical confidentiality.

6.2 Mandatory Security Logging

Pursuant to National Privacy Commission Circular No. 16-03 and the Supreme Court Rules on Electronic Evidence (A.M. No. 01-7-01-SC), the Service maintains audit logs recording the identity of the user who performed each action, a description of the action, the originating

IP address, and the exact time the action occurred. These logs serve as electronic evidence of system interactions in any dispute or clinical audit.

6.3 Records Retention

Pursuant to DOH Department Circular No. 2021-0226 (Revised Approved Records Disposition Schedule for Health Facilities), the Clinic retains outpatient clinical and health records for seven (7) years from the date of Your last outpatient encounter, and in-patient records for ten (10) years from discharge, subject to any longer period fixed in the Circular's annexes for specific record series.

While You retain the rights of a data subject under Section 16 of the Data Privacy Act of 2012, including the right to be informed, to object, to access, and to correct Your information, the right to erasure or blocking does not extend to clinical and health records within these statutory retention periods. Deactivating or deleting Your portal Account terminates Your online access credentials but does not erase Your underlying medical chart from the Clinic's records.

6.4 Third-Party and AI Data Processing

The Service uses DeepSeek-V4-Flash, accessed through a third-party API, within a Retrieval-Augmented Generation framework, to assist in formatting vitals, compiling diagnostic tests, and drafting abstracts as described in Section 4.2. To the extent this processing transmits Health Information to a third-party AI service provider:

- that provider acts as a Personal Information Processor as defined under Section 3(i) of RA 10173, engaged by the Clinic under a written data-sharing or outsourcing agreement imposing confidentiality, security, breach-notification, and data-return-or-destruction obligations;
- Health Information is minimized and, wherever reasonably feasible, de-identified or pseudonymized before transmission for AI processing, consistent with the Non-Disclosure and Data Confidentiality Agreement between the Clinic and the AI-Cardio Team;
- because this processing may involve a transfer of personal data outside the Philippines, the Clinic implements the safeguards required by applicable National Privacy Commission issuances on cross-border data transfer, and discloses the fact and general nature of the transfer in the Clinic's Privacy Policy; and
- the Clinic remains accountable for Health Information processed by any such third party to the same extent as for processing it performs directly, consistent with the Principle of Accountability under Section 21 of the Data Privacy Act of 2012.

6.5 Law-Enforcement and Judicial Requests for System Data

The Clinic discloses Account data, audit-log records, or other system data to law-enforcement or judicial authorities only pursuant to a valid subpoena, court order, or a warrant issued under the Rule on Cybercrime Warrants (A.M. No. 17-11-03-SC) implementing Republic Act

No. 10175, or as otherwise required by Philippine law. The Clinic will notify the affected Patient of such disclosure where notification is not itself prohibited by the order or by law.

7. Prohibited Uses and Penal Sanctions

Users of the Service are subject to the Cybercrime Prevention Act of 2012 (RA 10175) and the Electronic Commerce Act of 2000 (RA 8792). It is strictly unlawful to:

- Access or attempt to access accounts, medical histories, or administrative dashboards belonging to other patients or clinic staff (Illegal Access, Section 4(a)(1), RA 10175);
- Intercept, eavesdrop, or capture non-public data transmissions, API endpoints, or database queries (Illegal Interception, Section 4(a)(2), RA 10175);
- Alter, delete, corrupt, or inject malicious payloads (e.g., SQL injections, cross-site scripting) into clinic records or database schemas (Data Interference, Section 4(a)(3), RA 10175);
- Scrape, mine, or harvest patient information or AI-generated abstracts through automated scripts, bots, or reverse engineering tools (System Interference, Section 4(a)(4), RA 10175); or
- Impersonate another individual, or register under a false name, fabricated birthdate, or stolen identification.

Any violation of this Section will result in immediate account termination, blacklisting, and criminal referral to the Philippine National Police Anti-Cybercrime Group (PNP-ACG) and the National Bureau of Investigation Cybercrime Division (NBI-CCD).

8. Limitation of Liability and Fortuitous Events

8.1 Platform Availability and Force Majeure

Under Article 1174 of the Civil Code of the Philippines, the Clinic and its technology partners are not liable for service interruptions, data synchronization delays, or inability to access the web portal resulting from force majeure or fortuitous events, including but not limited to regional internet routing failures or telecommunications outages, national or municipal electrical grid blackouts, third-party cyberattacks or denial-of-service incidents, and severe typhoons, earthquakes, or civil emergencies.

8.2 Delineation of Liability

The Service is provided on an “AS IS” and “AS AVAILABLE” basis. To the maximum extent permitted by law, the software developers and technical hosts are not liable for incidental, indirect, or consequential damages resulting from technical bugs, UI latency, or browser incompatibility.

In accordance with Articles 1170 and 2176 of the Civil Code, nothing in this Agreement waives, limits, or excludes the legal liability of the attending cardiologist or the Clinic for personal injury, death, or clinical damages directly arising from gross professional

negligence, willful misconduct, or actionable malpractice committed by a licensed medical practitioner during an actual clinical encounter.

8.3 Interaction with Consumer Protection Law and Severability

Nothing in this Section 8 waives or diminishes any right or remedy available to You as a consumer of the Service's software and administrative features under the Consumer Act of the Philippines (Republic Act No. 7394), including protection against unconscionable sales acts or practices and any applicable service-quality or warranty standard that cannot lawfully be waived by contract.

If any provision of this Agreement is found to conflict with a non-waivable consumer or patient protection under Philippine law, or is otherwise held invalid or unenforceable for any reason, that provision shall be interpreted, or if necessary severed, to the minimum extent required to comply with such law, without invalidating the remainder of this Agreement.

9. Billing and Statutory Discounts

The Service is a clinical scheduling and records portal. It does not process consultation fees, billing, or other charges online, and does not store payment card or bank account information. All billing, fee assessment, and payment collection are handled physically at the Clinic's cashier at the time of Your visit.

The Clinic honors the twenty percent (20%) statutory discount and value-added-tax exemption available to qualified senior citizens under Republic Act No. 9994, and to qualified persons with disability under Republic Act No. 10754, as amended, upon presentation of a valid Senior Citizen or PWD identification card at the Clinic. These discounts are assessed and applied manually by Clinic staff and are not calculated or displayed within the Service.

10. Intellectual Property

This software, including its source code, database architecture, prompts, and accompanying documentation, is the intellectual property of the AI-Cardio Team, developed as a capstone project for the degree of Bachelor of Science in Information Technology at the Polytechnic University of the Philippines (PUP), and is protected under the Intellectual Property Code of the Philippines (Republic Act No. 8293, as amended by Republic Act No. 10372). Any rights the University holds in the software are governed by the University's own institutional intellectual property policy.

Patients are granted a personal, non-exclusive, non-transferable, and revocable license to access the portal solely for individual health management. De-compilation, unauthorized downloading of system code, or duplication of the Service's interface layouts is strictly prohibited.

11. Dispute Resolution and Jurisdiction

11.1 Conciliation

The parties agree that in the event of any controversy, claim, or dispute arising out of or relating to this Agreement or the use of the Service, they shall first submit the matter to informal conciliation and dialogue before the Clinic's Administration and Data Protection Officer.

11.2 Exclusive Judicial Venue

If the dispute is not resolved amicably within forty-five (45) calendar days from written notice, any formal civil, criminal, or administrative action shall be instituted exclusively before the proper trial courts of competent jurisdiction in the City of Manila, Philippines, to the exclusion of all other courts, venues, or tribunals.

12. System Contact and Data Protection Officer

For legal notices, data privacy concerns, or clinical records inquiries, contact:

- Entity: Cardiovascular Care Center
- Supervising Body: Clinic Administration & Data Protection Compliance Officer
- Physical Address: 3/F Room 303, Zone 073, Mirasol Building, Taft Avenue, Ermita, Manila, 1000 Metro Manila, Philippines
- Official Compliance Email: aicardiovascularmanagement@gmail.com